

and like references to her previous discovery responses are inadequate. This response does not answer the questions posed of which treating providers and documents have information on which of Plaintiff's alleged injuries from the collision underlying this action. General references to previous discovery responses are also insufficient to answer Defendant's interrogatories concerning general damages, compensatory damages, lost wages, and contentions of fault.

The form interrogatory at issue, #17.1, requests witness contact information pertaining to witnesses with information regarding Plaintiff's responses to requests for admissions. Plaintiff's response to this interrogatory does not contain the requested contact information, instead generally referring Defendant to her "treating physicians" and "family and friends."

Conclusion. Defendant's motion is granted. Plaintiff is ordered to serve supplemental responses to all interrogatories at issue within thirty days of the date of service of this order.

DEMARCUS PETTIFORD; ET AL. vs. FCA US, LLC; ET AL.
Case No. CU24-09802

Motion for Judgment on the Pleadings

TENTATIVE RULING

Defendant FCA US, LLC's motion for judgment on the pleadings is denied.

The standard for ruling on a motion for judgment on the pleadings is essentially identical to that of a demurrer. (*In re Guardianship of Olivia J.* (2000) 84 Cal.App.4th 1146, 1155.) The court must accept the truth of factual allegations made in the pleading, giving the allegations a liberal construction. (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516.) When a pleading is challenged based on the statute of limitations, the dates alleged in the complaint must show clearly and affirmatively that the action is barred by the applicable statute of limitations. (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232; *Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324; *Lockley v. Law Office of Cantrell* (2001) 91 Cal.App.4th 875, 881.)

The Song-Beverly Act "contains no express limitations period for a civil action." (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 213.) In 2024, the Legislature enacted Code of Civil Procedure section 871.21, which imposes a statute of limitations applicable to Plaintiffs' causes of action, but the statute did not become effective until after Plaintiffs filed their action and has no applicability to this case. Prior to passage of section 871.21, Song-Beverly Act claims were controlled by the four-year statute of limitations period provided by the Uniform Commercial Code rather than the three-year period pursuant to Code of Civil Procedure section 338(a). (*Krieger*, 234 Cal.App.3d at 215.)

It cannot be determined from the allegations of the first amended complaint that Plaintiffs' first three causes of action are clearly and affirmatively barred by the statute of limitations. Plaintiffs alleged that they purchased their vehicle on November 4, 2017 with the warranties given as set forth in Exhibit A of the pleading, including a five-year powertrain warranty covering the engine. (FAC, ¶¶ 10-11, Exh. A.) Plaintiffs alleged that on August 4, 2022 (within five years of purchase), they presented the vehicle to an authorized repair facility for warranty repair for a check engine light and a malfunction in the remote start feature, resulting in "warranty repairs including replacing the evap purge line assembly." (FAC, ¶ 16.) Despite representation that the vehicle had been repaired and working as intended, Plaintiffs alleged that they "continued to experience symptoms of the defects. (FAC, ¶ 21.) The complaint was filed within four years of discovery of the defect and alleged failure to repair or conform the defect to warranty.

Additionally, Plaintiffs do not allege any actual dates on which Defendant is alleged to have failed to commence repairs within a reasonable time or complete repairs within 30 days in violation of Civil Code section 1793.2(b) or to have failed to make available sufficient service literature and replacement parts to authorized service and repair facilities during the express warranty period. In fact, no actual defect or malfunction could be reproduced during inspection during December 7, 2017 (and therefore no repair could be commenced nor completed and no service literature or parts could have been insufficient) when the vehicle was first presented for repair, and all other dates the vehicle was presented for repair are within four years of commencement of this suit.

Lastly, breach of the implied warranty of merchantability usually occurs at the time a product is sold or delivered, but may be breached by a latent defect that is undiscoverable at the time of sale. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304.) The Song-Beverly Act provides a duration of up to one year for the implied warranty, during which time the warranty may be breached. (*Id.* at 1309.) Consequently, absent delayed discovery or some other basis for tolling or exception, the statute of limitations had to have run by November 4, 2022. But, Plaintiffs have adequately pleaded delayed discovery by alleging that the vehicle had been sold with latent defects (FAC, ¶ 69), including an engine defect (FAC, ¶ 30), that they presented the vehicle for repair for engine issues on multiple occasions (FAC, ¶¶ 16-20), and that Plaintiffs were repeatedly told that the vehicle had been repaired but continued to experience symptoms of the defects (FAC, ¶ 21).

ANEISHA GREEN vs. WILSHIRE LAW FIRM
Case No. CU25-06166

Plaintiff's Motion to Compel Defendant's Further Response to Requests for Production,
Set Three

TENTATIVE RULING